

DEVELOPING LOCAL GOVERNMENT CAPACITY FOR GENDER EQUITY AND SOCIAL INCLUSION (GESI) IN NEPAL

Purnima Annual Learning Exercise - Key Findings

Purnima: UK Support to Post Earthquake Recovery in Nepal is a five-year (2017-2022) FCDO-funded programme working in severely earthquake affected areas of rural Nepal, alongside the National Reconstruction Authority (NRA). It provides support to vulnerable people for social and economic recovery, capacity development for small and medium businesses, technical assistance to local government, and physical reconstruction of community infrastructure.

Each year, Purnima performs a learning exercise on a specific theme. This years learning exercised focused on how to strengthen local government capacity for inclusive planning and for addressing gender, equity and social inclusion (GESI). It centred on responding to the following four learning questions:

1. What is the policy framework for GESI in Nepal at local government level?
2. What is the governments' capacity for GESI at palika level?
3. Who is excluded, and how can local governments be more inclusive of these groups?
4. How to develop government capacity for gender and social inclusion at palika level?

The main report is available from the Purnima website (<https://purnimanepal.com/>) and the key findings and recommendations are presented below

1.1 What is the policy framework for GESI in Nepal at local government level?

The new federal structure, constitution and the introduction of the Local Government Operation Act (LGOA) has created a policy framework that largely supports GESI. This includes:

- Proportional representation. Women now hold 41% of local government elected positions. Dalit leaders are embedded in the Palikas and entrusted with responsibilities of ensuring inclusive governance and development.
- Empowerment of the provincial and local governments to develop their own laws and policies, as long as some stipulations for GESI are included. The majority of local governments now have policies for disabled people, senior citizens, children and single women.
- Establishment of the inter-ministerial Gender-Responsive Budget (GRB) to monitor sectorial budget allocations and public expenditures from a gender perspective

- Identification and support of vulnerable groups through a social security allowance (SSA)

However, the enabling environment created by the policy reforms have not always achieved the desired impact. For example, the LGOA shies away from mandating minimum criteria, such as gender-based budgeting or minimum proportional representation; as it was in the previous centralised system of governance. Therefore, the propagation of GESI is highly dependent on the willingness and capacity of local governments, which has not always been the case as detailed below.

1.2 What is the governments' capacity for GESI at palika level?

Local governments are now entrusted to draft and adopt legislation, plan, budget, and deliver services for social inclusion. However, as summarised below, they lack the skills, knowledge, capacity and experience to do so effectively and thus, progress on the ground has been slow:

- Local level policies have been established, but tend to copy national policies, with little reference to local context or consultation with local vulnerable people. However, through Purnima technical assistance (TA) Palikas have started localising acts, rules, regulations, and policies.
- The majority of positions, including the GESI representative, and proportional representation of women and marginalised groups has been achieved. However, due to the lack of experienced candidates, people have been assigned the GESI position without the required skills to fulfil it
- There is a good understanding of GESI at high level in local government, but less by the vulnerable groups themselves. Therefore, even though they participate in meetings, they have weak capacity to influence change
- The implementation of the developed policies and regulations remains weak as there is insufficient institutional arrangements and commitments with limited budget, and activities.
- GESI is a political agenda, but not always well followed through as Palikas tend to prioritise infrastructure over GESI-specific activities. However, Purnima is influencing change through its TA and Challenge Fund

- Although Gender Responsive Budgeting GRB has been introduced to ensure a focus on GESI, it is not yet well understood and thus less effective than the previous system with a fixed budget quota for gender-specific activities

1.3 Who is excluded, and how can local governments be more inclusive of these groups?

The constitution and local GESI policies have clear provisions to address discrimination based on caste, disability, gender, and geographical remoteness, but serious gender and exclusion gaps remain in practice, including:

- Informal social norms, practices, values, and biases continuing to constrain the implementation of measures that seek to transform power relations. The influence of the patriarchal culture on the role of women is reinforced by a religious and traditional value system, which are often reflected in policymaking.
- Prejudice towards marginalized caste, ethnic and religious groups due to which there are constraints in getting these groups economically active. For example, Dalits continue to experience caste-based discrimination despite laws outlawing such practice.
- Most of the participants who attend trainings are chairpersons, vice chairpersons, CAOs and sectoral heads. Ward chairpersons, Dalit members hardly get a chance to participate, minimizing their knowledge and capacity.
- Government vulnerability categories are well understood but limited to three groups (historically marginalised, socially marginalized and economically marginalized). Grouping of several marginalisation under limited categories may result in missing out of the needs of specific groups within these categories.
- There is a good understanding of entitlements, which is resulting in better service delivery, but there is a continued emphasis on welfare of the marginated (such as SSA) rather than empowerment
- Underlying causes of exclusion include lack of accessibility in infrastructures and communication, lack of access to resources and lack of conducive working environment.

To improve the delivery of social services and empowerment of vulnerable groups, it is recommended to leverage development partners and civil society, enhance citizens engagement, ensure GESI friendly local infrastructure and conduct monitoring and evaluation. This could include:

- Establishing better coordination with NGOs activities for the empowerment of woman of disadvantaged communities
- Social mobilization and support to self-help groups as a means to take GESI awareness to the communities
- Addressing power dynamins by promoting the rights and encouraging women and marginalised groups active and equitable participation in decision-making, planning, implementing, and management of infrastructure projects

- GESI inclusive monitoring and evaluation with the results used for learning and continuous improvement

1.4 How to develop government capacity for gender and social inclusion at palika level?

The challenges related to GESI in local governments do not stem from a lack of laws, policies or commitments. Rather, the challenge remains translating these policies and commitments into meaningful participation of vulnerable and marginalised groups in decision-making bodies in local governments, and ensuring that targeted efforts are made to address their particular vulnerabilities and needs. The following provides some recommendations to develop local government capacity for GESI:

- Stronger linkages between the three levels of Government (national, provincial and palkas) is to support local governments implement the legislative and regulatory framework. The Provincial Centre for Good Governance (PCGG) can be a link to fill this gap.
- Overarching national GESI policy framework that provides guidance to other levels of governments to consolidate the individual GESI policies and help to mainstream GESI in palikas
- Capacity assessment and capacity building of vulnerable individuals rather than just those currently in power, to empower them with the knowledge and confidence to implement change.
- Participatory and inclusive process for policy development and implementation with vulnerable groups (from within the government and community representatives) fully involved in discussions and decision making
- Stronger alliance of development partners, civil society and community groups to promote the adoption of GESI best practice. For example a learning platform where best practices, challenges and interventions are shared.
- A culture of shared learning and development by increasing the flow of information and communication between leadership roles and vulnerable groups (e.g. practice of communicating information during meetings and discussion, or alternatively set aside time to inform elected members and staff on information and communication received from other levels of governments).
- Continued reflection and improvement through GESI Audits that enable palikas to discover gaps, acknowledge them as such, and work together to construct action plans with budgets that are result-oriented.
- Orientation and capacity building on inclusive and Gender Responsive Budgeting (GRB)
- Strengthened monitoring system with GESI indicators, public hearings, and public audit systems, and a robust reporting and documentation system with disaggregated data